

Construction Services Agreement - Sarjapur Road

CONSTRUCTION SERVICES AGREEMENT

This Construction Services Agreement ("**Agreement**") is entered into on this 10th day of April, 2026 ("**Effective Date**"), by and between:

Skyline Ventures Ltd., a company incorporated under the laws of India, having its registered office at 12th Floor, Skyline Towers, Residency Road, Bengaluru, Karnataka 560025 (hereinafter referred to as the "**Client**");

AND

BuildRight Contractors Pvt. Ltd., a company incorporated under the laws of India, having its registered office at 22, Industrial Layout, Whitefield, Bengaluru, Karnataka 560066 (hereinafter referred to as the "**Contractor**").

RECITALS

WHEREAS the Client is desirous of constructing a mixed-use retail and office facility at Sarjapur Road, Bengaluru (the "**Project**");

WHEREAS the Contractor has represented that it possesses the requisite skill and resources to undertake the Project;

NOW THEREFORE, the Parties agree as follows:

1. Scope of Work

The Contractor shall design and construct a four-story mixed-use building of approximately 32,000 square feet at Sarjapur Road, Bengaluru, in accordance with the drawings and specifications set out in Annexure A. Work shall commence on the Effective Date and shall be completed on or before **28th February, 2027** (the "**Completion Date**").

2. Contract Price and Payment

The total consideration payable to the Contractor shall be **Rupees One Crore Forty Lakhs (₹1,40,00,000/-)**, exclusive of Goods and Services Tax, which shall apply at **eighteen percent (18%)**.

The Client shall settle all invoices raised by the Contractor within **thirty (30) days** from the date of the corresponding invoice. Prior to commencement of work, the Client shall pay the Contractor an advance of twenty percent (20%) of the total Contract Price, to be adjusted against future milestone invoices.

3. Liability

The aggregate liability of the Contractor arising out of or in connection with this Agreement shall not, under any circumstances, exceed an amount equal to the total Contract Price payable in the twelve (12) months preceding the event giving rise to such liability.

4. Term and Termination

The Client may terminate this Agreement by providing the Contractor with **ten (10) days'** prior written notice, without assigning any reason.

The Contractor may suspend or terminate this Agreement in the event the Client fails to make payment of any undisputed amount for a continuous period exceeding thirty (30) days from the due date.

5. Delay and Liquidated Damages

Should the Contractor fail to achieve completion by the Completion Date for reasons attributable to the Contractor, the Contractor shall pay liquidated damages equal to one percent (1%) of the Contract Price for each week of delay, subject to a maximum aggregate liability under this Clause not exceeding **eight percent (8%)** of the total Contract Price.

Where completion is delayed on account of the Client's failure to provide timely site access or necessary approvals, the Completion Date shall be extended accordingly, and the Contractor shall not be liable for liquidated damages in respect of such period.

6. Defects Liability and Warranty

The Contractor warrants all workmanship and materials against defects for a period of **twelve (12) months** from the date of the completion certificate, and shall rectify any notified defect at its own cost within such period.

7. Variations

No variation to the Scope of Work shall be binding unless recorded in writing and signed by both Parties, and shall include a corresponding adjustment to the Contract Price prior to the Contractor undertaking the varied work.

8. Price Adjustment

In the event of a significant increase in the market cost of steel, cement, or other primary construction materials during the currency of this Agreement, exceeding ten percent (10%) of the base rate prevailing as of the Effective Date, the Contract Price shall be equitably adjusted to reflect such increase, subject to mutual agreement between the Parties.

9. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of India. Any dispute arising out of this Agreement shall be resolved through arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration in Bengaluru, Karnataka.

10. Confidentiality

Each Party shall keep confidential all proprietary information disclosed by the other Party in connection with this Agreement. This obligation of confidentiality shall survive termination of this Agreement for a period of **three (3) years**.

11. Site Access

The Client shall provide the Contractor with unrestricted access to the site during normal working hours throughout the duration of the Project.

12. Entire Agreement

This Agreement, together with its Annexures, constitutes the entire agreement between the Parties and supersedes all prior negotiations and representations.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed as of the day and year first above written.

For Skyline Ventures Ltd. Name: _____ Signature: _____

For BuildRight Contractors Pvt. Ltd. Name: _____ Signature: _____